EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 59591/13
Elshan NAGIYEV and Nurlan GULIYEV against Azerbaijan
and 2 other applications
(see list appended)

The European Court of Human Rights (Fifth Section), sitting on 5 December 2017 as a Committee composed of:

Nona Tsotsoria, *President,*
Síofra O'Leary,
Lətif Hüseynov, *judges,*
and Anne-Marie Dougin, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. A list of the applicants is set out in the appendix.

2. The Azerbaijani Government ("the Government") were represented by their Agent, Mr Ç. Asgarov.

3. The applicants complained under Article 11 of the Convention that the refusals by the State authorities to register associations which they had founded had amounted to a violation of their right to freedom of association. They also complained that the authorities had seized the case files relating to their applications from the office of Mr I. Aliyev, their representative, infringing their right of individual application under Article 34 of the Convention. In addition, the applicants in applications no. 34151/14 and 51860/14 further complained under Article 6 of the Convention that they had not been notified of the Supreme Court hearings in the civil proceedings they had instituted in connection with the refusals to register their associations.

4. The applicants' complaints detailed above were communicated to the Government.

5. On 17 February 2017 the applicants in application no. 51860/14 informed the Court that they wanted to withdraw the application since the matter had been resolved and the association they had founded had been registered. On 27 April 2017 they further informed the Court that they no longer wished to be represented by Mr I. Aliyev.

6. On 20 February 2017 the applicants in applications nos. 59591/13 and 34151/14 also informed the Court that they wanted to withdraw the applications since the matter had been resolved because the associations they had founded had been registered. On 28 April 2017 they further informed the Court that they no longer wished to be represented by Mr I. Aliyev.

7. In a separate letter, Mr I. Aliyev confirmed that the applicants in the above-mentioned applications wanted to withdraw their applications.

THE LAW

8. The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

Accordingly, the cases should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases.

Done in English and notified in writing on 11 January 2018.

Anne-Marie Dougin
Acting Deputy Registrar

Nona Tsotsoria
President

APPENDIX

No.	Application no.	Lodged on	Applicant Date of birth Place of residence	Represented by
1.	59591/13	02/09/2013	**Elshan NAGIYEV** 28/03/1977 Baku **Nurlan GULIYEV** 26/12/1989 Agdam	Intigam ALIYEV (until 28/04/2017)
2.	34151/14	22/04/2014	**Elshan NAGIYEV** 28/03/1977 Baku **Nurlan GULIYEV** 26/12/1989 Agdam	Intigam ALIYEV (until 28/04/2017)
3.	51860/14	24/06/2014	**Afsun SUJAYEV** 14/11/1979 Lerik **Saida BASHIROVA** 30/12/1979 Lerik	Intigam ALIYEV (until 27/04/2017)